



DirtySnatcha Records / DirtySnatcha LLC

2439 Matilda Court, Warren, MI, 48092, USA

Dated: March 13, 2024

Kirby Bright p/k/a KirbyBright
304 North Orchard Dr.
Taylors, SC, 29697

Sean Bannard p/k/a Devious
3609 Wilmont Ave.
Roanoke, VA 24017

Re: Kirby Bright p/k/a “KirbyBright” and Sean Bannard p/k/a “Devious” -w- DirtySnatcha Records / DirtySnatcha, LLC License Agreement

Gentlepeople:

This letter when signed by Kirby Bright p/k/a “KirbyBright” (“KirbyBright”) and Sean Bannard p/k/a “Devious” (“Devious”) (KirbyBright and Devious individually and collectively referred to herein “Artist”) and by an authorized signatory of DirtySnatcha Records / DirtySnatcha LLC (“Company”) (each individually a “Party,” collectively the “Parties”) shall constitute Artist and Company’s sole and binding agreement (“Agreement”) in connection with exploitation of the Masters (hereinafter defined).

1. Artist hereby grants to Company in respect of master recordings embodying Artist’s performances of the composition(s) (“Composition(s)”) listed in Exhibit “A”, which shall be subject to Company’s approval, in its sole discretion, as commercially and technically satisfactory for the manufacture, distribution and sale of Records (the “Master(s)”) annexed hereto and made a part hereof, the exclusive right, privilege and license during the Term set forth in Exhibit “A” to manufacture, sell, distribute, communicate, transmit and advertise, itself or through any third-party designee or sublicensee, Records and other reproductions and exploitations of the Master(s), including the right to make derivatives and remixes of the Master(s), and to lease, license, convey and otherwise exploit and use the Master(s) and any derivatives/remixes thereof by any method (whether now known or unknown) and in any media (whether now known or unknown), including both physical or digital methods and media, and to perform publicly Records and other reproductions embodying the Master(s), including but not limited to as coupled with other master recordings licensed by Company, in connection with the Master(s). As used herein, “Record” shall mean any device or method by which sound may be recorded for later transmission to listeners, whether now known or unknown and howsoever used, and whether embodying sound alone or sound synchronized with or accompanied by visual images or other information, including without limitation, digital transmissions thereof.

2. Artist acknowledges and agrees that Artist’s services are rendered hereunder for one dollar (\$1.00) and other good and valuable consideration as provided herein, the receipt and sufficiency of which Artist hereby acknowledges.

3. (a) Company shall pay Artist the royalty set forth in Exhibit “A”. The royalty in Exhibit “A” shall be payable as follows: (i) fifty percent (50%) to Devious; and (ii) fifty percent (50%) to KirbyBright.

(b) Artist(s) will be paid via automatic Symphonic split pay. An email to set this up will be sent to the artist(s) from Symphonic after this agreement has been signed.

(c) Artist shall have the right, at Artist's sole cost and expense, once per year at any time within the three (3) year period after such statement is rendered, to conduct a reasonable examination during usual business hours of Company's books and records at the place where such books and records are kept. Artist may not maintain an action, suit, or proceeding of any nature against Company in respect of any royalty statement or other accounting rendered by Company hereunder (or in respect of the accounting period to which it relates) unless Artist commences that action, suit, or proceeding against Company in a court of competent jurisdiction within three and one-half (3½) years after the date rendered.

(d) Company shall have the right to maintain reasonable royalty reserves solely on physical sales, not to exceed, during any particular semiannual accounting period, twenty percent (20%) of the aggregate number of units of Records shipped. Each such royalty reserve shall be liquidated ratably over the two (2) semiannual accounting periods following the accounting period during which the applicable reserve is initially established.

(e) Artist hereby authorizes and directs Company to withhold from any monies due Artist from Company any portion thereof solely to the extent required to be withheld by the United States Internal Revenue Service and/or any other governmental authority, and to pay same to the United States Internal Revenue Service and/or such other authority.

4. Company agrees to give appropriate credit to Artist in such form as shall be delivered by Artist to Company in an album, single, EP or LP liner notes and packaging and in all metadata as applicable for all Records embodying the Master(s) and all advertisements directly related to a release of the Master(s), where such Master(s) is the primary focus of such advertisement (e.g. an advertisement for the Artist album would include such credit and an advertisement for a compilation containing one Master would not require such credit in the advertisement), in accordance with Company's standard policies and procedures. Notwithstanding the foregoing, solely with respect to metadata for the Master(s) delivered to streaming platforms, Artist irrevocably grants to Company the right to credit Artist as part of the primary artist; provided, however, that if, as a result of providing such credit, any income that would otherwise be paid to Company and Company's respective affiliates subsidiaries, assigns and/or licensees, etc. is paid to Artist, Artist shall immediately forward all such amounts to Company. For the sake of clarity, Company shall not be obligated to credit Artist as the primary artist in such metadata. Notwithstanding the foregoing, Company's inadvertent, non-repetitive failure to give such credit shall not be deemed a breach of this Agreement, provided that Company shall prospectively correct such credit as applicable and practicable following Company's receipt of Artist's notice of any such failure or upon Company's independent discovery of any such failure.

5. Artist agrees to promptly furnish to Company, when reasonably requested by Company, fully edited and mixed stereophonic Master(s) in a format satisfactory to Company for the commercial manufacture, transmission, sale and distribution of Records.

6. Company shall have the exclusive right during the Term to: (a) manufacture, distribute, communicate, transmit, sell and advertise or authorize the manufacture, communication, transmission, distribution, advertising and sale of Records embodying the Master(s) or other exploitations of the Master(s), including, but not limited to, an album, coupled with other Master(s) included herein, for inclusion on a Company released LP, for inclusion on a Company released EP, as individual singles, or any other variation or compilation whereby Company elects to commercially exploit the Master(s) herein; (b) use the names including both legal and professional and prior written approved likeness and prior written approved biographical material of the Artist for advertising and purposes of trade solely in connection with the exploitation of the Master(s); and (c) create promotional videos embodying the Master(s).

7. The Parties agree that the initial release of the Master(s) shall be mutually agreed upon in writing (email to suffice) by the Parties (for each applicable release, the "Initial Release Date"). Artist agrees not release and/or to allow a third-party to release any other sound recording(s) by Artist or any individual member of Artist for a period of six (6) weeks before any Initial Release Date and for a period of six (6) weeks following any Initial Release Date (the "Exclusivity Period"), unless otherwise mutually agreed.

8. Artist hereby represents and warrants that Artist is the author and composer of the undivided shares of the Compositions as set forth in Exhibit "A". Artist hereby grants and/or shall use reasonable efforts to cause all writers of the Composition(s) and their publishing designees to issue a "first use" mechanical license for reproduction of the Composition(s) on Records at one hundred percent (100%) of the minimum statutory rate in effect as of the date of release for the U.S. and Canada and elsewhere per industry custom and shall grant, and shall use reasonable efforts to cause Artist's respective licensees, designees and assigns, including all such writers and respective publishing designees of the Composition(s), to grant Company and Company's designees an irrevocable license during the Term, under copyright, to reproduce the Composition(s) in videos for promotional purposes in connection with the Master(s), and to distribute and perform those videos throughout the universe in any manner, and to authorize others to do so, without payment to Artist or any third parties with respect to those promotional uses provided that to the extent Company receives any compensation in connection with such uses, all writers of the Composition(s) shall be entitled to their pro-rata share thereof. Artist agrees to license Artist's share of the Compositions to Company to any third parties under the same terms and conditions as approved and/or licensed by Company. To the extent that Artist fails and/or refuses to do so, Company shall have the right to issue or direct Company's designees to issue to third parties, any and all licenses of any nature and kind to for the use of the Compositions without Artist's approval. In all such instances, Company shall use reasonable efforts to instruct any licensees to pay directly to Artist, Artist's share of any such advances, royalties or fees. Additionally, Artist shall not have the right to license the Compositions without Company's prior written consent.

9. Artist represents, covenants, warrants and agrees that:

(a) Artist has the right to enter into this Agreement, to license the rights herein licensed, is under no disability, restriction or prohibition in respect to its right to execute this Agreement and/or to perform the terms hereof, and Company's full and free exercise of the rights licensed hereunder will not conflict with, or infringe upon, or violate, any common law, statutory, or other rights of any third party, including, without limitation, contractual rights, copyrights and/or rights of privacy.

(b) The Master(s) and the Composition(s) are original and do not and shall not infringe upon or violate the rights of any third parties, and do not contain any uncleared materials that are not original, including, without limitation, "samples", or otherwise incorporate any uncleared copyrighted or otherwise proprietary material belonging to any person and/or entity other than Artist.

(c) The Master(s) and Composition(s) have not been previously released, distributed, exploited or exhibited in any form or manner anywhere throughout the Territory.

(d) Artist is the owner or licensee of all rights granted herein with respect to the Master(s) and owns all rights necessary for the manufacture, communication, transmission, advertisement, distribution, exploitation and sale of the Master(s) as set forth herein.

(e) All persons whose performances are embodied in the Master(s) and all other persons whose rights may be involved (including, without limitation, all producers of the Master(s)) have been or will be paid in full by Artist. All royalty payments to any such persons or entities with respect to the rights granted hereunder shall be paid by Artist.

(f) Artist has the right to use and allow others to use the prior written approved names, prior written approved likenesses and prior written approved biographical material of all persons whose performances are embodied on the Master(s) for advertising and purposes of trade solely in connection with the exploitation of the Master(s) as set forth herein.

(g) Artist shall not re-record, produce, arrange, mix or remix, for himself and/or for any person or entity other than Company, the Composition(s) for at least three (3) years from the later of the date of the commercial release of each Master.

(h) All of Artist's warranties and representations shall be true and correct upon execution hereof and upon delivery of the Master(s) hereunder and shall remain in full force and effect for so long as Company or its designees have any rights in or to the Master(s) hereunder. Company's acceptance of the Master(s) or other materials to be delivered to Company by Artist hereunder shall not constitute a waiver of any of Artist's representations, warranties or agreements hereunder.

10. (a) For One Dollar (\$1.00) and other good and valuable consideration herein, Artist hereby irrevocably and absolutely assigns, conveys and sets over to Company's publishing designee ("Publisher") an undivided fifty percent (50%) interest in the worldwide copyright (and all renewals and extensions thereof) and all other rights in and to the Compositions embodied in the Masters (the "Published Compositions"), to the full extent of your ownership, control or administration interest therein, in exchange for one dollar (\$1.00) and other good and valuable consideration as provided herein. Artist irrevocably acknowledges and agrees that, unless otherwise provided herein, such consideration is the totality of the consideration to which Artist shall be entitled for in connection with the Published Compositions and any and all exploitation of the Published Compositions by Company or any third party. Publisher shall be the exclusive administrator of one hundred percent (100%) of all rights in and to the Published Compositions, and shall be entitled to exercise any and all rights with respect to the control, exploitation and administration of the Published Compositions.

(b) Publisher shall pay to Artist fifty percent (50%) of Net Publishing Royalties, fifty percent [50%] with respect to performance royalties, provided that if Publisher receives the "writer's share" of performance royalties in respect of the Published Compositions the same shall be remitted to Artist) received by Publisher in connection with this paragraph 10. The term "Net Publishing Royalties" shall mean any and all publishing royalties earned and received by Publisher in the United States of America from the exploitation throughout the world of the of the Published Compositions less any reasonable costs or expenses incurred by Company in respect of the exploitation, administration and protection of the Published Compositions, including sub-publishing and administration fees.

(c) Monies payable to Artist under this paragraph 10 shall not be cross collateralized against other monies payable to Artist under this Agreement which are not directly related to publishing income, provided Artist is not in material breach of this Agreement.

(d) Artist hereby agrees to duly execute any documents necessary or desirable to effectuate the terms of this paragraph 10 or other terms of this Agreement that may be reasonably required by Company. In the event that Artist shall fail or refuse to execute any such documents within ten (10) business days after Company requests that Artist do so, Artist hereby appoints Company as Artist's true and lawful attorney-in-fact to execute such letter or documents in Artist's name and on Artist's behalf. Such power of attorney is irrevocable and is coupled with an interest.

(e) Publisher shall have the right to enter into a separate more formal co-publishing agreement (the "Co-Publishing Agreement") with Artist containing the terms of this paragraph 10 and the standard terms and conditions commonly found in Company's long form co-publishing agreement.

11. Each of the Parties hereto undertakes and agrees to indemnify, save and hold the other and anyone claiming through the other free and harmless from any and all liability, loss, damage, or actual verifiable out-of-pocket cost or expense, including reasonable outside attorney's fees, arising out of, connected with or related to any claim by any third party which is inconsistent with any of their respective covenants, warranties or representations hereunder.

12. This Agreement has been entered into in, and is to be interpreted in accordance with, the laws of the State of New York applicable to contracts made and to be performed entirely within the State of New York. All actions between the Parties arising out of or related to this Agreement shall be brought exclusively in the state or federal courts located in the State of New York and each Party hereby submits to the jurisdiction of those courts.

13. All notices hereunder shall be in writing and shall be given by personal delivery, registered or certified mail, return receipt requested, or overnight courier with proof of receipt, at the respective addresses hereinabove set forth, or such other address or addresses as may be designated by either Party, provided that any royalty statement may be sent by regular mail. Notices shall be deemed given when sent except that notice of change of address shall be effective only from the date of its receipt.

14. Company shall not be deemed to be in breach of any of Company's obligations hereunder unless and until Artist shall have given Company specific written notice describing in detail the breach and Company shall have failed to cure that breach within thirty (30) days [fifteen (15) days with respect to non-payment of monies] after Company's receipt of that written notice. To the extent that a breach by Artist is curable (e.g., the delivery of an uncleared sample is not curable and not subject to this cure period) Artist shall not be deemed to be in breach of any of Artist's obligations hereunder unless and until Company shall have given Artist specific written notice describing in detail the breach and Artist shall have failed to cure that breach within thirty (30) days after Artist's receipt of that written notice. In the event of any breach of any provision of this Agreement by Company, Artist's sole remedy will be an action at law for damages, if any, and in no event, will Artist be entitled to or seek to enjoin, interfere or inhibit the distribution, exhibition or exploitation of the Master(s).

15. This Agreement represents the entire understanding of the Parties hereto, superseding and replacing all prior oral or written understandings with respects to the subject matter hereof. No provision of this Agreement may be waived or amended except by an instrument executed by the Parties hereto. A waiver by either Party of any term or condition of the Agreement in any instance shall not be deemed or construed as a waiver of such term or condition for the future, or of any subsequent breach thereof. All remedies, rights, undertakings, obligations, and agreements contained in this Agreement shall be cumulative and none of them shall be in limitation of any other remedy, right, undertaking, obligation or agreement of either Party. If any part of this Agreement shall be determined to be invalid or unenforceable by a court of competent jurisdiction or by any other legally constituted body having jurisdiction to make such determination, the remainder of this Agreement shall remain in full force and effect. Company shall have the right, at Company's election, to assign any of Company's rights hereunder to any third party. Artist shall not assign any of its rights or obligations hereunder, except the right to receive monies hereunder or to an entity owned or controlled by Artist or under similar ownership. Nothing herein contained shall constitute a partnership or a joint venture between the Parties. This Agreement shall be binding upon and inure to the benefit of the Parties hereto and their respective heirs, representatives, successors and assigns. This Agreement may be signed in any number of counterparts, each such counterpart being deemed to be an original instrument, but all of which will constitute one document. Delivery of a signed counterpart of a signature page to this Agreement by electronic means (including via a secure digital service such as "DocuSign") will be effective as delivery of a manually executed counterpart of this Agreement. Artist specifically acknowledges that: (i) Artist has been advised to seek independent counsel concerning the interpretation and legal effect of this Agreement; and (ii)

Artist has either obtained such counsel or has intentionally refrained from doing so and has knowingly and voluntarily waived such right.

If the foregoing accurately reflects our understanding please sign in the space provide below.

Very truly yours,

AGREED TO AND ACCEPTED:

DirtySnatcha Records / DirtySnatcha, LLC

Kirby Bright p/k/a "KirbyBright"

By: _____

Sean Bannard p/k/a "Devious"

Its: _____

Individually and collectively referred to herein "Artist"

EXHIBIT "A"

MASTER(S)/COMPOSITION(S):

The following Master(s) required to be delivered under this Agreement shall be delivered by Artist no later than five (5) weeks prior to the mutually agreed upon the initial release date for said Master(s) (in any variation, e.g., single, EP, album compilation, etc.), and must be approved by Company, in its sole discretion, as commercially and technically satisfactory for the manufacture, distribution and sale of Records:

1. “Whoa ”

ARTIST: KirbyBright, Devious

TERM: Lifetime

METHOD OF SALE: any and all forms of distribution, including, but not limited to, traditional retail, nontraditional retail stores, and digital transmissions.

TERRITORY: Universe

ROYALTY: The total collective royalty being paid to Artist including any third-party collaborators on any Master(s) is Fifty Percent (50%) of Net Receipts as calculated based on companies’ standard terms, provided Artist shall only be paid royalties to the extent that royalties earned by Artist hereunder exceed all advances and other recoupable charges hereunder. Net Receipts shall mean Company’s gross receipts earned from the exploitation of the Master(s), (pro-rated as applicable when sold or licensed in connection with an album, other singles, EPs, LPs and/or other master recordings) less all actual costs incurred or paid by Company in connection with such sale and exploitation thereof, including but not limited to all mechanical royalties payable to Artist and/or third parties. Notwithstanding the foregoing, during the Term (as defined in Exhibit “A”), Company shall be entitled to retain one hundred percent (100%) of the so-called “label share” of performance income (i.e., SoundExchange, PPL and similar public performance income collection societies) in respect of the Master(s) and such income shall not be deemed gross receipts hereunder. Artist shall be entitled to receive the so-called “performer’s share” of performance income directly (subject to any portion thereof being payable to third-party performers). Company shall use reasonable efforts to register with SoundExchange.

MECHANICAL ROYALTIES: Company and Artist acknowledge that the Composition(s) shall be owned and/or controlled in accordance with the following ownership interests:

1. “Whoa”: Kirby Bright – Fifty Percent (50%) DirtySnatcha Records / DirtySnatcha Records
DirtySnatcha LLC - BMI Sean Bannard – Fifty Percent (50%) (Copyright Control))
DirtySnatcha Records / DirtySnatcha LLC - BMI

Company shall pay mechanical royalties at one hundred percent (100%) of the minimum statutory mechanical rate in effect.

COURTESY LINE: _____

WRITER(S)/PUBLISHER(S): _____